IN THE DISTRICT COURT OF APPEAL, FIFTH DISTRICT

STATE OF FLORIDA

IDRIAN AGUILA DIAZ,
Petitioner,

v.

STATE OF FLORIDA,
Respondent.

_____/

CASE NO.: _____
LT. COURT CASE: 2025 101270 CFDB

EMERGENCY PETITION FOR WRIT OF HABEAS CORPUS

The Petitioner, Idrian Aguila Diaz, pursuant to Florida Rule of Appellate Procedure 9.100(a), petitions this Honorable Court for a writ of habeas corpus. The petitioner maintains that his continued detention without an opportunity for pretrial release is not authorized under Florida Statute 907.41, Florida Rule of Criminal Procedure 3.132, or Florida Constitution Art. 1 § 14.

NATURE OF RELIEF SOUGHT

The Petitioner seeks immediate imposition of a monetary bond.

JURISDICTION

This Court has jurisdiction to entertain this petition under Article I, section 13, Florida Constitution, Article V, section 4(b)(3), Florida

Constitution, and Florida Rules of Appellate Procedure 9.030(b) and 9.100. Petitioner is an indigent defendant. Petitioner is currently illegally detained in the Volusia County Branch Jail in Daytona Beach, Florida, upon the order of the Honorable Angela Dempsey, Circuit Judge. (Appendix I).

FACTS UPON WHICH PETITIONER RELIES

1. Petitioner is being prosecuted in Circuit Court for the 7th Judicial Circuit, in and for Volusia County, Florida on one count:

a. Count I, Aggravated Battery with a Deadly Weapon, a violation of Fl. Stat. 784.045(1)(A)2.; (Appendix II)

2. Petitioner made his first appearance on Monday, February 24, 2025. A finding of probable cause was made on that same date pursuant to Petitioners First Appearance Action Form. (Appendix I)

3. At Petitioner's first appearance the presiding judge inquired from pretrial services (PTS) whether they had contacted the victim.

Judge: "You did have contact with the alleged victim?"

PTS: "That is correct your honor, she wants no violent contact".

4. The trial judge inquired whether the assistant state attorney (ASA) handling first appearance wanted to be heard on the question of the Petitioner's bond or contact conditions. The ASA requested the Petitioner

be given no bond based on concerns for safety of the victim and the public with no contact conditions with the victim.

5. The assistant public defender (APD) at first appearance responded to the ASA's request:

APD: "Judge, this is not a capital offense or an offense punishable by life with proof of guilt evident or presumption great. This is a second-degree felony. He is entitled to a bond. We would ask the court to consider setting a bond of twenty-five hundred dollars in this case."

6. The ASA and APD then made the following arguments:

ASA: "Judge we would argue this is a dangerous crime and therefore due to the threat of safety to the victim the state is asking for no bond.

"

APD: "Judge it is a dangerous crime. However, in order for a court to issue a no bond as far as a dangerous crime the State needs to show that there is probable cause and there are exigent circumstances. The state has set forth no exigent circumstances. Absent that your honor the motion is insufficient, and we would ask the court to set bond pursuant to 3.131(b). We would ask the court to set bond in this case."

7. The judge initially denied contact and then changed her mind to allow peaceful contact reasoning that he was going to be in custody which led to the following exchange:

APD: “Judge I take it that you are granting no bond in this case?”

Judge: “Correct.”

APD: “Based on it being a dangerous crime or is the court finding for the safety of the public in lieu of …?”

Judge: “I have concerns with the safety of the victim based on the alleged conduct here.”

APD: “Yes. And the basis for granting no bond is that just for the safety of the alleged victim or because it’s a dangerous crime? Can I ask for the clarification?”

Judge: “I think it is both.”

8. No additional arguments or discussion were made related to the Petitioner’s bond.

9. The trial court did not make a finding that exigent circumstances required the Petitioner to be held without bond.

10. The trial court did not discuss the standards for pretrial detention under Florida Statute 907.041(5)(c).

11. The ASA never affirmed that they intended to file a motion for pretrial detention.

12. Petitioner is currently being held without bond on Count I, Aggravated Battery.

ARGUMENT AND AUTHORITY

Petitioner seeks an order of this Court commanding the immediate imposition of a monetary bond on Count I, Aggravated Battery with a Deadly Weapon as it was not established that exigent circumstances required him to be held pending the filing of a Motion for Pretrial Detention; it was not established that the Office of the State Attorney (State) intended to file a Motion for Pretrial Detention; and it was not established that the trial court adequately evaluated the Petitioner's eligibility for pretrial detention under Florida Statute 907.41.

The Florida Rules of Criminal Procedure require that if a written motion for pretrial detention is not filed at first appearance the trial court must find that the State intends to file a motion for pretrial detention AND that exigent circumstances exist sufficient to justify the detention of the defendant pending the filing of the written motion.

The Florida Rules of Criminal Procedure states in pertinent part:

> "…The state may file with the judicial officer at first appearance a motion seeking pretrial detention, signed by the state attorney

> or an assistant, setting forth with particularity the grounds and the essential facts on which pretrial detention is sought and certifying that the state attorney has received testimony under oath supporting the grounds and the essential facts alleged in the motion. If no such motion is filed, the judicial officer may inquire whether the state intends to file a motion for pretrial detention, and if so, grant the state no more than three days to file a motion under this subdivision. Upon a showing by the state of probable cause that the defendant committed the offense and exigent circumstances, the defendant shall be detained in custody pending the filing of the motion. If, after inquiry, the State indicates it does not intend to file a motion for pretrial detention, or fails to establish exigent circumstances for holding defendant in custody pending the filing of the motion, or files a motion that is facially insufficient, the judicial officer shall proceed to determine the conditions of release pursuant to the provisions of rule 3.131(b)…" Fla. R. Crim. P. 3.132 (Emphasis added)

The pretrial detention rules are described in Florida Statute 907.041. In that statute, aggravated battery is defined as a dangerous crime. Fla. Stat. 907.041(5)(a)3. Pursuant to Florida Statute 784.021(2), aggravated battery with a deadly weapon is a second-degree felony.

I. Exigent circumstances

The term "exigent circumstances" is not otherwise defined in the Florida Rules of Criminal Procedure. Black's law defines exigent circumstances as, "A situation that demands unusual or immediate action and that may allow people to circumvent usual procedures…".

CIRCUMSTANCE, Black's Law Dictionary (11th ed. 2019).

In this case, the Petitioner was charged with Aggravated Battery with a Deadly Weapon. There is nothing about this case or its circumstances which warranted unusual or special attention. The victim in this case had the opportunity to be heard and still requested to have physical contact with the Petitioner presumably under the assumption that he would be released from jail. This case presents the opposite of exigent circumstances.

Factually, this case is notable because the victim initially used the weapon, a pair of scissors, to threaten the Petitioner's property. The Petitioner wrestled the weapon away. While the victim alleged the stabbing was intentional, the circumstances surrounding the stabbing were clearly chaotic. The fact that the Petitioner became armed in defense of his own property should have been analyzed in the Petitioner's favor and against any suggestion of exigency. It was also alleged in the police report that Petitioner helped the victim clean her wound prior to leaving the area of the stabbing, again suggesting that there was no exigency involved with this case.

The trial court did not properly evaluate its obligation under the rules of criminal procedure. It failed in its duty to examine the exigent circumstances surrounding this case despite objection from defense

counsel. The failure to do so requires reversal of the trial court's decision and imposition of monetary bond.

II. Intent to write motion

Florida Rule of Criminal Procedure 3.132 requires intent on the part of the State to file a pretrial detention motion prior to detaining a defendant. "If, after inquiry, the State indicates it does not intend to file a motion for pretrial detention …the judicial officer shall proceed to determine the conditions of release pursuant to the provisions of rule 3.131(b)…". The ASA in this case never stated whether their office intended to file a written pretrial detention motion.

The failure to state that on the record should have required the imposition of a monetary bond.

III. Improper reliance on Florida Statute 907.041(5)(c)

The Court did make the proper findings necessary to detain the Petitioner. Florida Statute 907.041 allows pretrial detention in limited circumstances. The trial court was prohibited from relying on subsection (5)(d) because the crime alleged was not a capital felony, a life felony, or a felony of the 1st degree. Additionally, the factual circumstances did not qualify for subsections (5)(c)1.-4. or subsections (5)(c)6.-8. The trial court was limited to considering (5)(c)5. That subsections states:

> "The defendant poses the threat of harm to the community. The court may so conclude, if it finds that the defendant is presently charged with a dangerous crime, that there is a substantial probability that the defendant committed such crime, that the factual circumstances of the crime indicate a disregard for the safety of the community, and that there are no conditions of release reasonably sufficient to protect the community from the risk of physical harm to persons…" § 907.041, Fla. Stat. Ann.

The trial court did not analyze whether there was a substantial probability that the Petitioner committed the crime, whether the factual circumstances indicated a disregard for the safety of the community, or whether there were any conditions of release reasonably sufficient to protect the community.

The court never inquired about the Petitioner's criminal history, work or residence history, the ability to live without contacting the victim, the availability of electronic monitoring, or the victim's wishes for contact. The trial court never considered anything outside the four corners of the affidavit.

The failure to do so requires reversal of the trial court's decision and imposition of monetary bond.

IV. Capable of error yet evading review

It is likely that by the time this Honorable Court gets the opportunity to review and rule on these issues there will be other opportunities for the Petitioner to relitigate his circumstance. Pursuant to Florida Rule of

Criminal Procedure 3.132, the State only has three days to file a written motion for pretrial detention. “If no such motion is filed, the judicial officer may inquire whether the state intends to file a motion for pretrial detention, and if so, grant the state no more than three days to file a motion under this subdivision.” Fla. R. Crim. P. 3.132. Additionally, pursuant to Florida Statute 907.041, the formal pretrial detention hearing must be heard within five days of 1st appearance.

However, the issues surrounding the requirements of finding exigent circumstances and the necessity of the prosecutor’s office intention to file the motion are both likely to occur regularly but evade review. “However, mootness does not destroy a court’s jurisdiction if the question raised is of great public importance or is likely to recur, or if the error is capable of repetition yet evading review.” *Kelley v. Rice*, 800 So. 2d 247, 250 (Fla. Dist. Ct. App. 2001).

The recent changes to Florida Statute 907.04 are likely the direct cause in the increased requests for pretrial detentions and the confusion regarding the interplay between the rules of procedure and the statute despite the Florida Supreme Court’s clear instruction. “…when this Court has promulgated rules of practice and procedure, and a statute provides a

contrary practice or procedure, the statute is unconstitutional to the extent of the conflict." *Abdool v. Bondi*, 141 So. 3d 529, 550 (Fla. 2014).

The short window of time between 1st appearance and the detention hearing makes it incumbent that this Honorable Court rule on the issues regardless of the status of the trial case at the time of decision. These issues are likely to recur and evade review.

CONCLUSION

Petitioner's detention is illegal because the trial court did not establish exigent circumstances, the Office of the State Attorney did not indicate an intention to file a motion for pretrial detention, and because the Petitioner's case was not properly evaluated under the pretrial detention statute. As such, Petitioner should be provided monetary bond on Count I, Aggravated Battery. Consequently, this Honorable Court should issue a writ of habeas corpus commanding Petitioner be provided a monetary bond.

MATTHEW J. METZ
PUBLIC DEFENDER
SEVENTH JUDICIAL CIRCUIT

/s/ Matthew Metz
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been field electronically in the Circuit Court, Seventh Judicial Circuit, at www.myflcourtaccess.com; which will email a copy to The Office of the State Attorney, at eservicevolusia@sao7.org; and the Office of the Attorney General at crimappdab@myfloridalegal.com; the Honorable Elizabeth Blackburn, County Court Judge, mpastor@circuit7.org; Corrections Director, Joseph Demore at jdemore@volusia.org; and a copy mailed to: Idrian Aguila Diaz at 1300 Red John Drive, Daytona Beach, Florida 32124, on this 26th day of February, 2025.

SWORN OATH

I swear that the facts stated in this petition are known to me personally and are true.

CERTIFICATE OF FONT

I HEREBY CERTIFY that the font used in this brief is either 14-point Arial or Bookman Old Style, in compliance with Rule 9.045(b), Florida Rules of Appellate Procedure, and that the word count complies with Rule 9.210(a)(2), Florida Rules of Appellate Procedure.

/s/ Matthew Metz
MATTHEW METZ
PUBLIC DEFENDER